

Court No. - 32

Case :- WRIT - C No. - 41093 of 2018

Petitioner :- Jhanni

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ankur Mehrotra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

This writ petition has been filed, inter alia, for the following relief;

"I. A writ, order or direction or a writ mandamus directing the respondents No. 2 to pay compensation on the account of death of Sampat Ram (Husband of Petitioner) due to electrocution,

II. A writ, order or direction or a writ mandamus directing the respondent no. 2 to decide Application of compensation dated 12.9.2016."

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

The husband of the petitioner suffered electrical injuries from a high voltage electric wire, which was allegedly lying very low, as a result thereof he died on 16.5.2016. An information was immediately given to the police in this regard and after registration of the matter in General Diary, the post-mortem of the husband of the petitioner was conducted. Thereafter, the petitioner (wife of the deceased) submitted an application before the Respondent No. 2 along with all the required documents for compensation but till date her application has neither been decided nor any compensation has been paid to the petitioner.

After arguing the matter for quite some time, learned counsel for the petitioner has confined his prayer to the extent that the petitioner may be permitted to make a fresh representation before the concerned authority in respect of his grievances with a direction to the concerned authority to decide the same within a stipulated period.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the case, the writ

petition is **disposed of** with a direction to the petitioner to make a fresh representation before the Respondent No. 2/concerned authority ventilating his grievances within ten days from today along with a certified copy of this order enclosing therewith a copy of the writ petition and its Annexures and, if any such representation is made, the Respondent No. 2/concerned authority shall submit his report as provided under Section 161 of the Electricity Supply Code, 2005 along with representation and other documents of the petitioner before the Respondent No. 3, Executive Engineer within 30 days from the date of receipt of the same. Thereafter, the Executive Engineer, Respondent No. 3 shall make all endeavour to consider and decide the same finally by a speaking order after giving opportunity of hearing to the petitioner in accordance with law expeditiously preferably within 30 days thereafter.

Order Date :- 13.12.2018

vinay